

JUDICIAL REVIEW AC-2025-LON-004293

Annex A — Grounds vs Engagement Analysis

Zahmoul v Secretary of State for Justice & HMCTS

Every Ground Pleaded — What Was Asked — Whether the Defendant Engaged — Whether the Court Engaged

#	Ground (as pleaded)	Binary question — what was asked	Defendant engaged?	Court engaged? (Collins Rice J, 11 Mar 2026)	Status
1a	Administrative revocation of participation measures (FPR Part 3A) Participation measures were court-ordered. They ceased without any judicial determination, order, or recorded reasons.	Does an identifiable judicial act exist — identifying the judge, date, order and reasons — that determined that participation measures should cease or be treated as spent?	No. Defendant's summary grounds asserted matters were 'judicial' without identifying any act. No order produced.	No. Order does not reference participation measures. Does not identify any judicial act. Does not address the ground.	Not Addressed by Defendant or Court
1b	Non-enforcement of Maintenance Pending Suit (MPS) MPS payments ceased Feb 2024. Not enforced Mar–May 2024. Arrears retrospectively remitted in final order without notice or hearing.	Does an identifiable judicial act exist that determined it was lawful to cease enforcing the MPS order and to insert a retrospective remission without a hearing?	No. No act identified. Defendant characterised as outside JR scope.	No. Not addressed. Order does not mention MPS enforcement or the remission insertion.	Not Addressed by Defendant or Court
2	Absence of reasons and administrative audit trail No identifiable administrative decision, recorded reasons, or traceable handling exists for any of the matters raised.	Does an identifiable act exist recording what administrative decisions were taken, by whom, when, and on what reasons — across any of the matters formally raised?	No. Defendant did not produce any administrative decision record or audit trail for any matter.	No. Order does not address absence of audit trail. Does not engage with Ground 2.	Not Addressed by Defendant or Court
3	Administrative non-handling of Oxus material Serious material placed before the court: sworn \$0 declaration, SEC filings showing \$565,000, D11 application, Nasdaq photograph, contempt	Does an identifiable act exist determining what administrative handling of the Oxus material occurred — and if none, why no process exists?	No. Defendant's summary grounds characterised Oxus as a judicial finding question — not an administrative handling question. No act identified.	No. Order characterises claim as being about criminal complaints and enforcement. Does not address administrative handling of Oxus material. Ground 3 not engaged.	Not Addressed by Defendant or Court

	application. No administrative action, referral, or recorded response.				
4	Administrative handling of Imerman devices Two digital devices in court custody. No chain of custody. No judicial order for disposal. No custody record. No review record. Whereabouts unknown.	Does an identifiable act exist determining the administrative status of the devices — custody, review, release, or disposal — and recording the accountability trail?	No. Defendant did not identify any judicial act or administrative record governing custody or disposal of the devices.	No. Order does not address Imerman devices, their custody, or their evidential status. Ground 4 not engaged.	Not Addressed by Defendant or Court
5	Failure to consider cumulative impact Failure to consider the cumulative effect of repeated omissions on a disabled litigant's participation, access to recourse, and ability to engage with proceedings.	Does an identifiable act exist that considered the cumulative impact of the administrative omissions on participation and access to recourse for a disabled court user?	No. Defendant did not address cumulative impact. Each matter treated in isolation.	No. Order does not address cumulative impact. Ground 5 not engaged.	Not Addressed by Defendant or Court
6	Equality Act 2010 / Public Sector Equality Duty (s.149) HMCTS as a public authority has a continuing duty under s.149 EA 2010. No court at any level has engaged with whether the PSED was met in relation to the handling of a disabled litigant's participation and access.	Has any court or public authority identified and applied s.149 EA 2010 to the administrative handling of the Claimant's participation, equality adjustments, and access to recourse?	No. Defendant did not address PSED. No engagement with EA 2010 ss.20–21, 29, or 149 in summary grounds.	No. Order does not mention Equality Act 2010. Does not engage with PSED. Ground 6 not engaged.	Not Addressed by Defendant or Court
7	Administrative void ground The absence of any identifiable judicial act across all five matters is itself the legal wrong. Where no judicial act exists, the matter is administrative. Administrative voids — the complete absence of any determination — are amenable to judicial review.	Is the complete absence of any identifiable judicial act across multiple formally raised matters itself an administrative void that engages the supervisory jurisdiction of the Administrative Court?	No. Defendant did not address Ground 7 at all. Not mentioned in summary grounds.	No. Ground 7 not addressed at all. Not mentioned in the order. The order does not acknowledge the administrative void argument exists.	Not Addressed or Acknowledged by Defendant or Court.

WHAT COLLINS RICE J SAID INSTEAD: The order characterised the claim as being about (a) criminal complaints, (b) procedural matters ancillary to judicial determinations, and (c) enforcement of court orders. None of those characterisations appear in any of the seven pleaded grounds. The order answered a different claim from the one filed.

RESULT: Seven grounds were pleaded. None were addressed by the Defendant or the Court. Ground 7 was not acknowledged.

Source documents: N463 (4 March 2026) | Claimant's Reply to Defendant's Summary Grounds (30 January 2026) | Statement of Undetermined Matters (23 February 2026) | 9 April 2026 email to ACO listing unanswered matters | Collins Rice J order (11 March 2026).